

Nepal Health Research Council Act, 1991

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.17
2. Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075 2075.11.19

Act Number 29 of the Year 2047

An Act Made to Establish and Provide for the Nepal Health Research Council

Preamble: Whereas, it is desirable to establish and provide for a Nepal Health Research Council to scientifically study and research various problems arising in the health sector and to maintain health facilities for the general public;

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the Council of Ministers, pursuant to Article 129 of the Constitution of the Kingdom of Nepal, 2047. 1. Short Title and Commencement: (1) This Act may be cited as the "Nepal Health Research Council Act, 2047".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Council" means the Nepal Health Research Council established pursuant to Section 3.

(b) "Committee" means the Executive Committee constituted pursuant to Section 7.

(c) "Member" means a member of the Executive Committee, and the term shall also include the Chairperson, Vice-Chairperson, and Member-Secretary of the Committee.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the regulations made under this Act.

3. Establishment of the Council: (1) There is established a Nepal Health Research Council for conducting high-level study and research on health-related matters.

(2) The office of the Council shall be located in Kathmandu. 4. Council to be a Corporate Body: (1) The Council shall be an autonomous and corporate body with perpetual succession.

(2) The Council shall have its own separate seal for all its acts and proceedings.

(3) The Council may, like an individual, acquire, use, sell, or otherwise dispose of movable and immovable property.

(4) The Council may, like an individual, sue and be sued in its own name. 5. Objectives of the Council: The objectives of the Council shall be as follows:-

(a) To conduct or cause to be conducted study and research on various problems that have arisen or may arise in the future in the health sector.

(b) To operate advisory services and information-related programs to make health-related study and research programs more useful, and

(c) To obtain information about study, research, or work done on various health-related problems arising in the world and to inform the Government of Nepal from time to time. 6.

Powers, Duties, and Functions of the Council: The powers, duties, and functions of the Council shall be as follows:- (a) To conduct or cause to be conducted study and research in various health-related fields within Nepal, subject to the health policy of the Government of Nepal, omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (b) To formulate policies relating to both basic and applied types of study and research on health. (c) To conduct research on health systems, bio-medicine, bio-medical health services, and diet, behavior, and ethics, and to conduct or cause to be conducted study on the prevention, diagnosis, and treatment of diseases. (d) To determine priority areas for health-related study and research. (e) To grant consent for study and research on health-related subjects, determine authenticity, and make recommendations to the Government of Nepal. (f) To coordinate, guide, and evaluate health-related research activities and provide necessary advice. (g) To publish and disseminate knowledge, experience, and research findings on health and to exchange information at the national and international levels. (h) To conduct health-related research within Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and, if research needs to be conducted in a field where facilities are not available, to grant approval for conducting a part of the research abroad. (i) To provide awards, scholarships, and travel expenses as necessary to individuals or institutions conducting health-related research. (j) To maintain records of health-related research. 7. Constitution of the Executive Committee: (1) For the operation of the Council's functions, an Executive Committee consisting of the following members shall be constituted:- (a) Seven persons nominated by the Government of Nepal from amongst medical practitioners of the modern medicine system and the Ayurvedic medicine system who have experience in health-related study and research ? Member (b) Representative, Ministry of Finance ? Member (c) Representative, National Planning Commission ? Member Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.(d) Representative, Ministry of Health and Population ? Member (e) Chief, Research Committee, Institute of Medicine ? Member (f) Chairperson, Nepal Medical Council ? Member (g) One person designated by the Government of Nepal ? Member-Secretary (2) The Government of Nepal shall designate one Chairperson and one Vice-Chairperson from amongst the members nominated pursuant to clause (a) of sub-section (1). (3) The term of office of the nominated members of the Committee shall be four years, and they may be re-nominated. (4) The Government of Nepal may, if deemed necessary, by publishing a notice in the Nepal Gazette, increase, decrease, or make changes to the members of the Committee. 8.

Meeting of the Committee: (1) The meeting of the Committee shall be held on such date, time, and place as designated by the Chairperson. (2) If at least fifty percent of the total number of members of the Committee are present, it shall be deemed to constitute a quorum for a meeting of the Committee. (3) The meeting of the

Committee shall be chaired by the Chairperson, in the absence of the Chairperson by the Vice-Chairperson, and in the absence of both the Chairperson and the Vice-Chairperson, by a person chosen by the members from amongst themselves. (4) Other matters relating to the meeting of the Committee may be determined by the Committee itself. 9. Powers, Duties, and Functions of the Committee: (1) It shall be the duty of the Committee to perform all acts and proceedings, exercise powers, and carry out duties that the Council is required to do, subject to this Act and the regulations made under this Act. (2) The Committee may, as necessary, delegate the powers exercisable by it to the Chairperson, Member, Member-Secretary, or an officer of the Council. 10. Sub-Committees May be Formed: The Committee may form sub-committees as necessary for the operation of its functions. 11. Approval Required to Conduct Health-Related Research: (1) After the commencement of this Act, a person or institution wishing to conduct research in the health field shall obtain the approval of the Council. (2) While granting approval pursuant to sub-section (1), the Council may also impose conditions as prescribed. Explanation: For the purposes of this section, "research" shall be understood to mean research including experimentation. 12. Special Powers of the Council: (1) The Council may issue necessary directives to a person or institution engaged in health-related research activities approved pursuant to Section 11. (2) If any person or institution conducts research activities without obtaining approval pursuant to Section 11, or while conducting research activities with approval fails to comply with the prescribed conditions or directives of the Council, the Council may warn such person or institution or prohibit them from conducting such research work for a specified period. (3) While taking action pursuant to sub-section (2), the Council shall give the concerned person or institution a reasonable opportunity to defend themselves. 13.

Fund of the Council: (1) The Council shall have its own separate Fund. (2) The following amounts shall be deposited in the Fund of the Council:- (a) Grant amounts received from the Government of Nepal, (b) Grant amounts received from any foreign government or international organizations, (c) Amounts received for providing advisory services or conducting or causing to be conducted research work, (d) Amounts received from other sources. (3) While accepting grants from foreign governments or international organizations, prior approval of the Government of Nepal shall be obtained. (4) All amounts received by the Council shall be deposited by opening an account in a commercial bank. (5) All expenses to be borne by the Council shall be met from the Fund pursuant to sub-section (1). 14. Accounts and Audit: (1) The accounts of the income and expenditure of the Council shall be kept in the manner adopted by the Government of Nepal. (2) The audit of the Council shall be carried out by the Auditor General. 15. Administrative Head: The Government of Nepal may designate the Chairperson as Executive Chairperson. If no Executive Chairperson is so designated, the Member-Secretary of the Committee shall act as the Administrative Head of the Council. 16. Employees of the Council: (1) The Committee may appoint such employees as are necessary for the operation of the Council's functions. (2) The conditions of service, facilities, and remuneration of employees appointed pursuant to sub-section (1) shall be as prescribed. 17. Report to be Submitted to the Government of Nepal: The Council shall submit an annual report of its work to the Government of Nepal within six months of the end of the fiscal year. 18. Government of Nepal May Give Directions: The Government of Nepal may give necessary directions to the Council, and it shall be the duty of the Council to comply with such directions. 19. Liaison with the Government of Nepal: While liaising with the Government of Nepal, the Council shall do so through Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.the Ministry of Health and Population. 20. Dissolution of the Council: (1) If the Government of Nepal decides to dissolve the Council for any reasonable cause, the Council shall be dissolved. (2) If the Council is dissolved pursuant to sub-section (1), the rights and liabilities of the Council shall vest in the Government of Nepal. 21. Power to Make Regulations: The Council may, with the approval of the

Government of Nepal, make necessary regulations to carry out the objectives of this Act.